

LAM14K02141 LAM14K02141

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-07

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Case Number: LAM14K02141 Hearing Date: July 7, 2026 Dept: 26

TENTATIVE RULING:

Defendant Anthony Daetwan Smith's

Motion to Pay Judgment in Installments is placed off calendar.

Analysis:

On February 7, 2014, Plaintiff Interinsurance Exchange of the Automobile Club ("Plaintiff") filed the instant action against Defendants Anthony Daetwan Smith ("Defendant Smith") and Angela Ronita Butler ("Defendant Butler"). Defendants filed an Answer on April 1, 2014, and on June 30, 2015, Plaintiff filed a Notice of Settlement of Entire Case. In accordance with that settlement, the Court dismissed the action on August 7, 2015, but retained jurisdiction pursuant to Code of Civil Procedure section 664.6. (Judgment Order of Dismissal, 08/07/25.) On November 30, 2015, the Court entered judgment against Defendant Smith. (Judgment 11/30/15.)

The Court renewed the judgment on October 30, 2025. On April 3, 2025, Defendant Smith filed the instant Motion for Order to Pay Judgment in Installments. However, the Motion does not include a proof of service showing it was served on Plaintiff, or that Plaintiff was given notice of the hearing date. Failure to give notice of the papers and hearing date is a violation of due process and the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) Furthermore, Plaintiff then filed an Acknowledgment of Full Satisfaction of Judgment on June 15, 2026, rendering the relief sought in the Motion moot.

Defendant Anthony Daetwan Smith's

Motion to Pay Judgment in Installments, therefore, is placed off calendar.

Judicial Assistant to give notice.